

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior District Judge Richard P. Matsch**

Date: December 14, 2007
Courtroom Deputy: J. Chris Smith
FTR Technician: Kathy Terasaki

Civil Action No. 05-cv-01917-RPM-MJW

ADEPT COMPUTER SOLUTIONS, INC., a California corporation,

Plaintiff,

Peter C. Forbes
Gary D. Aronson

v.

ZOLL DATA SYSTEMS, INC., a Delaware corporation,

Defendant.

Natalie M. Hanlon-Leh
James G. Sawtelle
Mary V. Sooter

COURTROOM MINUTES

Trial to Jury Day Ten

9:00 a.m. Jurors return and resume deliberations.

12:19 p.m. Court in session.

Defendant's representative David Brown present.

Court states it received a written question from the jury.

Court reads jury's question.

Court states it will re-instruct jurors (DMCA).

Defendant's objection to Court re-instructing juror by Ms. Hanlon-Leh.

Defendant's objection is overruled.

Jurors present.

Court instructs jurors.

12:29 p.m. Court in recess.

2:04 p.m. Court in session.

Plaintiff's representative Scott Pickett and defendant's representative David Brown present.

December 14, 2007
05-cv-01917-RPM

Court states it received a notice that the jury has reached a verdict.

Jurors present.

Presiding juror states jury has reached a verdict.

Court reads jury's verdict.

VERDICT

We, the jury, are all agreed upon the following answers to the Court's questions.

1. What amount of damages did the plaintiff Adept Computer Solutions, Inc., prove by a preponderance of the evidence were caused by the breach of the license agreements between it and the defendant Zoll Data Systems?

\$150,660.21

2. What amount of damages in the categories shown did the plaintiff Adept Computer Systems prove by a preponderance of the evidence resulted from the conduct of the defendant Zoll Data Systems that infringed the plaintiff's copyrighted material in its Street Wizard software?

(a) Adept's losses sustained as a result of defendant's infringement, if any.

\$ 0 (None)

(b) Profits obtained by Zoll from sales of its Nomad product attributed to its unauthorized use of Adept's copyrighted Street Wizard software.

\$243,750.00

3. Did the plaintiff, Adept Computer Solutions prove by a preponderance of the evidence that the defendant, Zoll Data Systems, removed Copyright Management Information of the copyrighted Street Wizard software in violation of the Digital Millennium Copyright Act?

Yes

If the answer is yes, then state the number of such violations?

47

DATED: 12/14/2007
